BRENDAN NGWA NFORBI
Plaintiff, In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN JOAQUIN

BRENDAN NGWA NFORBI, Plaintiff, v. **HOME DEPOT U.S.A., INC., a Delaware corporation, d/b/a THE HOME DEPOT and THE HOME DEPOT DISTRIBUTION CENTER; and DOES 1 through 20, inclusive,** Defendants.	Case No. _____ **VERIFIED COMPLAINT FOR DAMAGES, DECLARATORY AND INJUNCTIVE RELIEF** (1) ICRAA, Civ. Code § 1786.40; (2) CCRAA, Civ. Code § 1785.20.5; (3) UCL, B&P Code § 17200; (4) Penal Code § 290.46(j) *[Unlimited Civil]* *[Jury Trial Demanded]*

Plaintiff BRENDAN NGWA NFORBI ("Plaintiff") alleges as follows:

I.

INTRODUCTION

1. This is an action under Penal Code section 290.46, subdivision (j), for the unauthorized employment use of California Megan's Law registry information. On or about August 2024, Defendant Home Depot U.S.A., Inc. hired Plaintiff to work at its distribution and fulfillment center at 5395 Hopkins Road, Tracy, California 95377. Plaintiff accepted that hire and began onboarding. Home Depot ran a background check concerning Plaintiff. The background report came back with information disclosed pursuant to Penal Code section

290.46 in it, including Plaintiff's listing on the California Sex Offender Registry. Home Depot used that registry information, in whole or in part, to cease communication, ghost Plaintiff, and make an employment decision that ended or prevented his work at the Tracy Center.

2. Penal Code section 290.46(j)(1) authorizes use of information disclosed under that section only to protect a person at risk. Subdivision (j)(2)(E) prohibits use of that information for purposes relating to employment, except as another law authorizes. A warehouse or fulfillment-center hiring, continuation, or termination decision is a purpose relating to employment.

3. Those are factual allegations about Home Depot's own report and Home Depot's own decision. He alleges: (a) Home Depot hired him; (b) Home Depot ran a background check; (c) the report that came back contained information disclosed pursuant to Penal Code section 290.46, including his California Sex Offender Registry listing; (d) Home Depot used that information to ghost him and to make an employment decision; and (e) that use was a purpose relating to employment, which section 290.46(j)(2)(E) forbids.

4. Taking those factual allegations as true, as this Court must on demurrer, Plaintiff states a cause of action under Penal Code section 290.46(j) that is plausible on its face. Home Depot obtained a background report containing Megan's Law registry information and used that information to make an employment decision. Subdivision (j)(2)(E) prohibits that use. Code of Civil Procedure section 425.10 requires a statement of the facts constituting the cause of action in ordinary and concise language. Section 452 requires this Court to construe the pleading liberally with a view to substantial justice between the parties. A demurrer admits the material facts properly pleaded. It does not test whether Home Depot will later produce a different report.

5. Plaintiff does not presently possess a copy of the Home Depot background report.

The report, the vendor file, the order time, the access log, and the adjudication notes are in Defendants' possession. He does not attach the report because Home Depot has not given it to him. He nonetheless alleges, as fact, what that report contained and how Home Depot used it. Withholding the report does not make those allegations disappear at the pleading stage. The precise hire date, job title, rate of pay, and vendor name are likewise facts of Home Depot's personnel and screening records. Plaintiff alleges them on information and belief as to August 2024 and the Tracy Center. A demurrer for uncertainty under Code of Civil Procedure section 430.10(f) is not a substitute for records Defendant possesses and has not produced. Plaintiff will seek the report and those records in discovery.

6. Plaintiff does not presently know the legal name of the consumer reporting agency, if any, that Home Depot used. He has sued DOES 1 through 10 for that vendor and for any Home Depot affiliate that was the actual employing or decision-making entity. He does not name The Home Depot, Inc., the publicly traded parent, merely because it owns affiliated entities.

7. This Complaint does not plead a Tameny wrongful-termination count, an IIED count, or a FEHA or Government Code section 12952 Fair Chance Act count. The Fair Chance reservation is not a count. Plaintiff will timely exhaust California Civil Rights Department rights and seek leave to amend if discovery shows conviction history caused or contributed to the decision after the hire. He does not presently plead unpaid-wage, waiting-time, or wage-statement counts. 'Began onboarding' is not, without more, compensable work. He preserves those theories if badge, time, training, or pay records later show he performed employer-controlled activity for which wages were due. The load-bearing claim is the statutory prohibition in Penal Code section 290.46(j). Companion consumer-report and unfair-competition counts are pleaded only to the extent the same employment use, if proven, also violated those statutes. ICRAA and CCRAA are pleaded in the alternative so the notice claim survives whether the report was investigative or an ordinary consumer credit report. Plaintiff does not presently plead Labor Code section 432.7 as a cause of action. He has not

alleged that any report used an arrest that did not result in a conviction, diversion, or a dismissed conviction. He preserves leave to amend if the file later supports those reserved theories.

II.

PARTIES

8. Plaintiff BRENDAN NGWA NFORBI is a natural person residing in Stockton, San Joaquin County, California. He is also identified in employment and court records as Brendan Ngehsi Ngwanforbi. Those name variants refer to Plaintiff.

9. Plaintiff is required to register under California Penal Code section 290. At all times relevant to this Complaint, information identifying him appeared on California's Megan's Law website and California Sex Offender Registry, operated pursuant to Penal Code section 290.46.

10. Defendant HOME DEPOT U.S.A., INC. ('Home Depot') is a corporation organized under the laws of the State of Delaware, qualified to transact business in California, and doing business as The Home Depot and The Home Depot Distribution Center. On information and belief, Home Depot U.S.A., Inc. owned, operated, staffed, and controlled the distribution and fulfillment center located at 5395 Hopkins Road, Tracy, California 95377 (the 'Tracy Center'), and was the legal employer that hired Plaintiff and made the employment decision challenged here.

11. The Tracy Center is a Home Depot warehouse and fulfillment facility in the International Park of Commerce in Tracy, San Joaquin County. It is a worksite, not a separate legal entity. Plaintiff sues the corporation that operates it.

12. If discovery establishes that another Home Depot subsidiary or affiliate was the

employing or decision-making entity, Plaintiff has sued DOES 11 through 15 for that purpose and will amend to substitute the correct entity.

13. On information and belief, Home Depot's designated agent for service of process in California is CSC Lawyers Incorporating Service, 2710 Gateway Oaks Drive, Suite 150N, Sacramento, California 95833. Plaintiff will serve Home Depot through the agent listed on the California Secretary of State record as of the date of service. Service is not to be made at the Tracy Center merely because that is where Plaintiff worked.

14. The true names and capacities of DOES 1 through 20 are unknown to Plaintiff, who therefore sues them by fictitious names under Code of Civil Procedure section 474. DOES 1 through 10 include the consumer reporting agency, investigative consumer reporting agency, or other vendor that assembled, evaluated, furnished, or scored background information about Plaintiff for Home Depot, and the individuals who ordered, reviewed, or acted on that information. Plaintiff will amend this Complaint when their identities and roles are ascertained.

15. Plaintiff is informed and believes that each DOE Defendant participated in, authorized, directed, furnished information for, implemented, concealed, or ratified one or more acts alleged and is legally responsible for the resulting harm.

III.

JURISDICTION AND VENUE

16. This Court has subject-matter jurisdiction under article VI, section 10 of the California Constitution and Code of Civil Procedure section 410.10.

17. This action is properly designated unlimited civil under Code of Civil Procedure sections 85 and 88 because the aggregate relief sought exceeds $35,000, exclusive of interest

and costs, including actual, statutory, exemplary, and equitable relief according to proof. No specific personal-injury or punitive-damages amount is pleaded.

18. This Court has personal jurisdiction over Home Depot because Home Depot is qualified to do business in California, operates the Tracy Center in this County, hired Plaintiff for work in this County, and made or implemented the challenged employment decision in California.

19. Venue is proper in the County of San Joaquin under Code of Civil Procedure sections 395 and 395.5 because Plaintiff resides here, the Tracy Center is here, the hire and the employment decision occurred here, and the liability and injury arose here.

20. Plaintiff has not pleaded a federal claim. If a later amendment adds one, that fact will be stated then. This Complaint is a California statutory action belonging in this Court.

IV.

TIMELINESS

21. Penal Code section 290.46 does not prescribe its own limitations period. This action upon a liability created by that statute is timely under Code of Civil Procedure section 338, subdivision (a), which requires that such an action, other than a penalty or forfeiture, be commenced within three years after accrual.

22. The cause of action accrued, if at all, when Home Depot used registry information for purposes relating to Plaintiff's employment — that is, on the date of the employment decision challenged here, not on the date of hire, and not on the date Plaintiff first registered under section 290.

23. Plaintiff is informed and believes that the challenged employment decision — Home Depot's cessation of communication after he accepted the hire and began onboarding — occurred on or after on or about August 2024, and in any event within three years before the filing of this Complaint. The precise day is a fact of Home Depot's personnel and screening records.

24. Plaintiff does not concede that Code of Civil Procedure section 335.1 or section 340, subdivision (a), supplies the limitations period for the section 290.46(j) count. The actual-damages and discretionary enhancement authorized by section 290.46(j)(4)(A) are a liability created by statute, not an action upon a statute for a penalty. The labeled civil-penalty slice is pleaded in the alternative and is not the sole theory. Those statutes, if raised as affirmative defenses, will be addressed on the nature of the right sued upon. Plaintiff does not plead a Tameny or personal-injury count in this Complaint.

24A. Civil Code section 1786.52 requires that an ICRAA action be brought within two years from the date the plaintiff knew or should have known of the violation. Plaintiff received no Civil Code section 1786.40 advice and no copy of any Home Depot report. He could not discover from a notice he never received that an investigative consumer report had been obtained and used. He knew, on or about August 2024, that communication had stopped. He did not then know that an investigative consumer report had actually been obtained. The precise day communication stopped is a fact of Home Depot's file. The face of this Complaint does not establish a discovery date that bars the ICRAA count. If Defendants interpose section 1786.52, the date is a fact to be proven.

24B. The Unfair Competition Law claim is timely under Business and Professions Code section 17208's four-year period. That period is independent of any shorter period that may apply to a borrowed predicate. The UCL count is not pleaded to resurrect a time-barred statutory right.

V.

COMMON FACTUAL ALLEGATIONS

A. The Tracy Center Hire

25. On information and belief, on or about August 2024, Home Depot hired Plaintiff to work at the Tracy Center, 5395 Hopkins Road, Tracy, California 95377. Plaintiff accepted that position and began onboarding. The precise start date, job title, shift, and rate of pay are facts of Home Depot's personnel file.

26. The hire was for work in San Joaquin County. Plaintiff resided in San Joaquin County and traveled to the Tracy Center for that work.

27. Home Depot required Plaintiff to complete, or caused him to be subjected to, a pre-employment or post-hire background investigation as a condition of the hire, of continued employment, or of assignment at the Tracy Center. That is the background check alleged in paragraphs 1 and 34.

28. Plaintiff does not presently possess a written offer letter, onboarding packet, time records, or wage statements from the Tracy Center hire. Those documents, if they exist, are in Home Depot's possession or the possession of its vendors. Their absence from Plaintiff's files does not negate the hire or the onboarding he began.

B. The Employment Decision

29. After Plaintiff accepted the hire and began onboarding, Home Depot ceased communication and ghosted him. That cessation ended or prevented his work at the Tracy

Center. Ghosting after an accepted hire is an adverse employment action: it denied, withdrew, or ended the employment. A written termination letter is not an element of Civil Code section 1786.40, Civil Code section 1785.20.5, or Penal Code section 290.46(j). Silence after an accepted hire is the decision. Home Depot sent no written termination, no explanation, and no further reporting instruction. The precise day communication stopped is a fact of Home Depot's personnel and screening records.

30. To Plaintiff's knowledge, Home Depot did not tell him that the decision rested on a criminal conviction, a safety incident at the Tracy Center, a failed drug screen, a falsified application, or any other independent, lawful, job-related ground. If Home Depot later asserts such a ground, Plaintiff will test it against the contemporaneous file.

31. On information and belief, Home Depot did not provide Plaintiff, before the decision, a copy of any consumer report used in the decision or a written description of his rights under the Fair Credit Reporting Act. No such package arrived by email, portal, or mail.

32. On information and belief, Home Depot did not, at the time of the decision, advise Plaintiff that an investigative consumer report had been obtained or supply the name and address of the agency that prepared it, as Civil Code section 1786.40 requires when employment is denied under circumstances in which such a report was obtained.

C. The Background Report and Home Depot's Use of It

33. Plaintiff is a person as to whom information is disclosed on the California Megan's Law website. That website, and the statute that created it, warn that the information may not be used for employment.

34. Home Depot ran a background check concerning Plaintiff in connection with the

Tracy Center hire. The check was a condition of the hire, of continued employment, or of assignment at the Tracy Center.

35. The background report that came back contained information disclosed pursuant to Penal Code section 290.46 concerning Plaintiff, including his listing on the California Sex Offender Registry, a Department of Justice website or Megan's Law website result, or a derivative sex-offender compilation whose source of record was the California registry.

36. Home Depot used that registry information, in whole or in part, to cease communication, ghost Plaintiff, and make the employment decision alleged in paragraph 29. The use was a substantial factor in that decision. The use was a purpose relating to employment.

37. This claim is Home Depot's report and Home Depot's decision. Plaintiff does not presently know the legal name of the consumer reporting agency, if any, that assembled the report. He has sued DOES 1 through 10 for that vendor.

38. Home Depot did not give Plaintiff a copy of the report. It did not tell him that the report contained registry information. It did not identify any independent, lawful, job-related ground for the decision. The report remains in Defendants' possession.

39. Taking the allegations in paragraphs 34 through 36 as true, Plaintiff states a plausible claim under Penal Code section 290.46(j): Home Depot used information disclosed pursuant to that section for a purpose relating to employment, which subdivision (j)(2)(E) prohibits.

40. A demurrer admits those facts. It is not an occasion for Home Depot to substitute a different account of its own unproduced file. If production later shows ordinary court records

and no California-registry source, this count will stand or fall on that record — after production, not before.

41. Alternative explanations — a safety incident, a no-show, a failed drug screen, a lawful criminal-history adjudication under Labor Code section 432.7 or another authorizing statute, or a business slowdown — can be tested against a discrete set of records. Plaintiff will seek the personnel file, time and pay records, background-check order and report, adjudication notes, and communications of the decision-maker.

42. Penal Code section 290.46(j)(3) does not authorize employment use of Megan's Law website information merely because an employer may obtain criminal-history information from another lawful source. A conviction that appears in ordinary court records is not this claim. This claim is the use of information disclosed pursuant to section 290.46. Lerma v. Amazon.com Services, LLC, C.D. Cal. No. 8:22-cv-01727, Dkt. 36, dismissed a Megan's Law count after the employer's report was in the record and showed ordinary court records and a national sex-offender search returning no record. That dismissal turned on the report. This Complaint alleges that Home Depot's report contained registry information and that Home Depot used it. Taking those allegations as true, a court cannot perform a Lerma analysis on the face of this pleading. Defendants may not obtain a pleading-stage dismissal by withholding the report Plaintiff has alleged.

D. Knowledge, Concealment, and Harm

43. Home Depot knew or should have known that employment use of Megan's Law information is prohibited. The registry website displays that warning. Home Depot is a sophisticated employer with dedicated background-check and legal functions. On information and belief, its vendor contracts and adjudication guides address or should address California registry restrictions.

44. On information and belief, Home Depot did not disclose to Plaintiff that registry information had been obtained or used, and thereby deprived him of a meaningful opportunity to inspect the source, dispute a mismatch, and invoke the statutory remedies before the decision became final.

45. The use was not to protect a person at risk within the meaning of section 290.46(j)(1). A general warehouse or fulfillment assignment at the Tracy Center is not, without more, the narrow authorization that subdivision (j)(1) describes. Plaintiff does not allege facts bringing any other statutory authorization into play, and Home Depot has the burden of proving any such authorization as a defense.

46. As a result of the decision, Plaintiff lost the Tracy Center employment, including the opportunity to earn the wages and benefits of that position, according to proof and subject to mitigation. Plaintiff also suffered emotional distress, humiliation, and anxiety from an unexplained employment decision he is informed and believes rested on a status the Legislature has forbidden employers to use. Wages earned or lost, if any, will be proven from Home Depot's records. Plaintiff does not invent a rate or duration here.

47. Plaintiff has sought and continues to seek replacement employment and does not claim a guaranteed lifetime expectancy from an at-will position. Economic damages will be limited to losses proven with reasonable certainty and without double recovery against other dockets that arise from different employers and different decisions.

E. Inspection Rights and Why a Demurrer Cannot Replicate Lerma

48. The section 290.46(j) claim has four elements: (a) information disclosed pursuant to section 290.46; (b) use of that information by a defendant; (c) a purpose relating to

employment; and (d) the use was not to protect a person at risk and was not otherwise authorized by law. Plaintiff alleges each element as fact. The report contained information disclosed pursuant to section 290.46. Home Depot used that information. The use related to the Tracy Center hire and the later employment decision. The use was not, without more, protection of a person at risk. Taking those allegations as true, the claim is plausible.

49. A demurrer tests the pleading, not the unproduced report. Defendants may deny that the report contained registry information. They may not convert that denial into a Lerma dismissal while the report remains in their possession. The First Cause of Action under Civil Code sections 1786.40 and 1786.50 is independent of the section 290.46(j) count. A notice failure can reach discovery even if production later shows a different source of record.

50. If Plaintiff was an employee of Home Depot, Labor Code section 1198.5 entitles him to inspect and receive a copy of the personnel records Home Depot maintained relating to his performance or to any grievance concerning him. Plaintiff has not yet served a section 1198.5 request. He will. Those records, together with the background-check order and report, are the discrete set that will confirm or refute registry use. Their present absence from Plaintiff's files is not a defect in this pleading.

VI.

FIRST CAUSE OF ACTION

California Investigative Consumer Reporting Agencies Act
Civil Code sections 1786.40 and 1786.50 — Against Home Depot and User DOES
(Pleaded on Information and Belief)

62. Plaintiff realleges paragraphs 1 through 50 and 56 through 60 to the extent consistent with this cause.

63. On information and belief, a consumer reporting agency or investigative consumer reporting agency assembled or evaluated information concerning Plaintiff's character, general reputation, personal characteristics, or mode of living for employment purposes at Home Depot's request. Civil Code section 1786.2 defines an investigative consumer report as one in which information on those subjects is obtained. Plaintiff alleges the product concerned those subjects. He does not invent personal interviews. If this Court concludes that interviews are required and none occurred, this ICRAA count does not apply and the CCRAA count does.

64. Home Depot procured or caused that report to be prepared and was the user of its information.

65. On information and belief, the report was obtained before Home Depot made the employment decision alleged in paragraph 29.

66. Civil Code section 1786.40(a) required Home Depot, under circumstances in which employment was denied or ended and an investigative consumer report had been obtained, to advise Plaintiff of that fact and supply the agency's name and address.

67. Home Depot did not comply. Plaintiff was not told a report had been obtained and was not given the agency's name and address.

68. The omission caused incremental harm distinct from the denial itself. Plaintiff could not timely obtain the Home Depot-specific report, test whether its source was the California registry or ordinary court records, or invoke his statutory inspection and dispute rights before the decision became final. Ghosting after an accepted hire is the adverse action. This ICRAA count does not depend on proving Penal Code section 290.46(j). A notice failure under Civil Code section 1786.40 is independently actionable if an investigative consumer report was

obtained and employment was denied or ended without the required advice. If Defendants establish that the product was an ordinary consumer credit report and not investigative, this count does not apply and the CCRAA count does.

69. Under Civil Code section 1786.50, Plaintiff seeks actual damages or $10,000, whichever is greater, costs, attorney's fees if later represented, and punitive damages upon proof of gross negligence or willfulness.

70. This ICRAA count is not a Fair Credit Reporting Act count. Plaintiff has not pleaded 15 U.S.C. section 1681b(b)(3) in this Complaint. He reserves amendment if production shows Home Depot based the decision in whole or in part on a consumer report and failed to provide a copy of the report and a federal rights summary before the adverse action.

71. Plaintiff also reserves amendment under Civil Code section 1786.16 if production shows Home Depot procured the report before providing the required standalone disclosure and obtaining written authorization. He does not presently allege nonauthorization as an established fact. No Home Depot disclosure form is in Plaintiff's files. On information and belief, Home Depot did not provide a standalone section 1786.16 disclosure clearly stating that an investigative consumer report would include information on character, general reputation, personal characteristics, or mode of living.

VII.

SECOND CAUSE OF ACTION

California Consumer Credit Reporting Agencies Act

Civil Code sections 1785.20.5 and 1785.31 — Against Home Depot and User DOES

(Pleaded in the Alternative to ICRAA)

71A. Plaintiff realleges paragraphs 1 through 50 and 62 through 71 to the extent consistent with this cause.

71B. In the alternative, if the background report was an ordinary consumer credit report rather than an investigative consumer report, the California Consumer Credit Reporting Agencies Act applies. Civil Code section 1785.20.5 required Home Depot, before procuring a consumer credit report for employment purposes, to provide written notice that a report would be used, and, before taking adverse action based in whole or in part on the report, to provide a copy of the report and a notice of rights.

71C. The file contains no copy of any Home Depot consumer credit report and no rights notice before the ghosting. No such package arrived by email, portal, or mail. On information and belief, the decision was based in whole or in part on the background report Home Depot obtained.

71D. If the report was investigative, this count does not apply and the ICRAA count does. If it was an ordinary consumer credit report, the failure to furnish the report and rights notice before adverse action violated section 1785.20.5.

71E. Under Civil Code section 1785.31, Plaintiff seeks actual damages, costs, attorney's fees if later represented, and punitive damages upon proof of willfulness, according to proof.

VIII.

THIRD CAUSE OF ACTION

Unlawful and Unfair Business Practices

Business and Professions Code section 17200 — Against All Defendants

72. Plaintiff realleges paragraphs 1 through 71E to the extent consistent with this equitable cause.

73. Defendants engaged in unlawful practices by violating, to the extent proven, Civil Code section 1786.40, Civil Code section 1785.20.5, and Penal Code section 290.46(j)(2)(E).

74. Defendants engaged in unfair practices because the gravity of the harm — ending a Tracy Center hire on a criterion the Legislature has forbidden, or on a consumer report without the advice the statute required — outweighs any utility of undoing the hire on secret registry-derived information while denying the worker the source, the report, and an opportunity to respond.

75. Plaintiff suffered injury in fact and lost money or property through lost wages from the ended Tracy Center employment, the compelled disclosure of personal identifying information for screening, and other economic losses to be proven. Injury in fact sufficient for UCL standing is not the same as recoverable restitution. Plaintiff does not seek future unearned wages as UCL restitution. He seeks restitution only of money or property in which he had a vested interest and that Defendants acquired through the challenged practices — including, according to proof, the value of personal information he was compelled to disclose and any vested unpaid wages if the personnel file later shows earned work. He does not allege that Home Depot holds a fund of unearned future wages.

76. Legal damages are not an adequate remedy for Defendants' retention, use, and dissemination of registry-derived screening data. On information and belief, Home Depot continues to use the same or similar standardized screening procedures for California applicants, including at the Tracy Center.

77. That continuing practice is the basis for UCL injunctive relief and for declaratory relief under Code of Civil Procedure section 1060. Plaintiff seeks an injunction requiring Defendants to cease prohibited employment use of California registry information at California facilities including the Tracy Center; preserve and disclose the source and audit trail of Plaintiff's screening; and correct or segregate unlawfully used data.

78. Plaintiff also seeks restitution of vested money or property actually acquired, and declaratory relief ancillary to the injunction, to the extent authorized by Business and Professions Code section 17203.

IX.

FOURTH CAUSE OF ACTION

Unauthorized Employment Use of Registry Information

Penal Code section 290.46(j) — Against All Defendants

51. Plaintiff realleges paragraphs 1 through 50, except allegations expressly pleaded in the alternative are incorporated only to the extent consistent with this cause.

52. Penal Code section 290.46(j)(1) authorizes use of information disclosed under that section only to protect a person at risk, except as otherwise authorized by law.

53. Section 290.46(j)(2)(E) prohibits use of information disclosed under that section for

purposes relating to employment unless another law authorizes the use.

54. Section 290.46(j)(4)(A) makes the user liable for the actual damages, and any amount that may be determined by a jury or a court sitting without a jury, not exceeding three times the amount of actual damage, and not less than two hundred fifty dollars ($250), and attorney's fees, exemplary damages, or a civil penalty not exceeding twenty-five thousand dollars ($25,000). Plaintiff seeks the civil remedies the statute authorizes for unauthorized employment use of information disclosed pursuant to section 290.46, whether this Court locates those remedies in subdivision (j)(4)(A) or in another subdivision of section 290.46. He does not rest this cause on a criminal-enhancement theory.

55. The $25,000 figure in subdivision (j)(4)(A) is a cap on the civil penalty, not a substitute floor that displaces actual damages. Plaintiff seeks the remedies the statute authorizes according to proof.

56. Each element alleged in paragraph 48 is satisfied. Home Depot used information disclosed pursuant to section 290.46 concerning Plaintiff. The user is the employer that takes the information into account in making the employment decision, not a consumer reporting agency that merely retrieves, scores, or republishes it. Plaintiff does not name a vendor as a defendant on this count. This count is directed at Home Depot's use.

57. The use related directly to employment: it concerned the Tracy Center hire or the later decision that ended or prevented Plaintiff's work there.

58. The use was not authorized by section 290.46(j)(1) or by any other provision of law applicable to this warehouse and fulfillment assignment.

59. Defendants knew or should have known that employment use was prohibited, for

the reasons alleged in paragraph 43.

60. Defendants' use was a substantial factor in the employment decision and caused the loss and injury alleged.

61. Plaintiff seeks the remedies authorized by section 290.46(j)(4)(A), or by whichever subdivision this Court holds supplies the civil remedy for unauthorized employment use. He does not presently allege a multi-incident pattern or practice at Home Depot sufficient for subdivision (j)(4)(B) preventive relief. He seeks that remedy only if discovery shows reasonable cause to believe such a pattern or practice. The damages claim under subdivision (j)(4)(A) does not depend on pattern or practice. Civil Code section 3294 punitive damages, if any, are pleaded in the alternative to the statute's exemplary damages or civil penalty for the same conduct. Plaintiff will elect. He does not seek double punitive recovery.

61A. On information and belief, Home Depot's human-resources and centralized background-adjudication personnel are managing agents within the meaning of Civil Code section 3294(b): they exercise substantial discretionary authority over hiring and screening policy, not merely the power to hire or fire a single applicant. Those managing agents established, implemented, and ratified the standardized screening practices alleged. Plaintiff seeks section 3294 punitive damages only upon proof of oppression, fraud, or malice and of managing-agent authorization, ratification, or personal participation. ICRAA punitive damages, if any, rest on Civil Code section 1786.50 and do not depend on section 3294.

X.

PRESERVATION OF EVIDENCE

79. Defendants are on notice to preserve Plaintiff's complete Tracy Center personnel and hiring file, including records subject to Labor Code section 1198.5; offer, onboarding,

badge, time, attendance, and pay records; the background-check order, disclosure, authorization, report, component searches, adjudication, access, and cancellation logs; communications of every person who recommended, approved, or implemented the employment decision; vendor contracts and adjudication guides in effect in 2024; and policies governing Megan's Law, FCRA, ICRAA, and fair-chance review.

80. Relevant electronically stored information includes applicant-tracking and HRIS audit fields, event timestamps, reason codes, report-view logs, emails, chats, SMS, and data-retention records from July 1, 2024 through December 31, 2024, and any later date on which the employment decision was recorded or revisited.

81. Home Depot's own background-check file is the document that will confirm the contents Plaintiff has alleged.

XI.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff prays for judgment against Defendants as follows:

1. For actual, consequential, and economic damages according to proof, without double recovery;

2. For the remedies authorized by Penal Code section 290.46(j)(4)(A), including statutory, treble, exemplary, or civil-penalty relief as the trier of fact and law permit;

3. For ICRAA actual damages or $10,000, whichever is greater, and punitive damages upon the showing required by Civil Code section 1786.50, if that count is proven;

4. For CCRAA actual damages and punitive damages upon the showing required by Civil Code section 1785.31, if that alternative count is proven;

5. For punitive damages under Civil Code section 3294 against only those Defendants for whom the statutory prerequisites are proven, pleaded in the alternative to any exemplary damages or civil penalty awarded under Penal Code section 290.46 for the same conduct, with no double recovery and no amount pleaded;

6. For restitution under Business and Professions Code section 17203 of vested money or property Defendants acquired, not unearned future wages;

7. For injunctive relief under Business and Professions Code section 17203, and for Penal Code section 290.46(j)(4)(B) preventive relief only if discovery shows reasonable cause to believe a pattern or practice;

8. For declaratory relief under Code of Civil Procedure section 1060 concerning whether Defendants' standardized California screening practices may use information disclosed pursuant to Penal Code section 290.46 for employment;

9. For costs of suit and attorney's fees where authorized if Plaintiff obtains counsel;

10. For prejudgment and post-judgment interest as allowed by law; and

11. For such other relief as the Court deems just and proper.

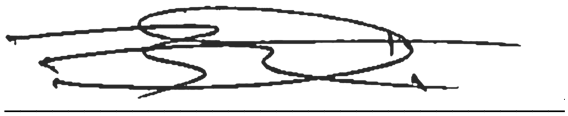
XII.

DEMAND FOR JURY TRIAL

82. Plaintiff demands trial by jury on all causes of action and issues so triable.

Dated: September 8, 2026

Respectfully submitted,



BRENDAN NGWA NFORBI

Plaintiff, In Propria Persona

VERIFICATION

I, BRENDAN NGWA NFORBI, declare:

I am the Plaintiff in this action. I have read the foregoing VERIFIED COMPLAINT and know its contents. The matters stated are true of my own knowledge, except those stated on information and belief, and as to those matters I believe them to be true.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Signed on September 8, 2026, at Milpitas, California.



BRENDAN NGWA NFORBI